

25STCV13858 25STCV13858

County: los-angeles

Division: Civil Law and Motion

Department: 735

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Case Number: 25STCV13858 Hearing Date: June 30, 2026 Dept: 735

Rodriguez v. Lifeline Ambulance, et al.

Defendant Falck Mobile Health Corp.'s

Demurrer to Complaint

BACKGROUND

On May 12, 2025, Plaintiff Tony Olimon

Rodriguez filed a complaint against Defendants Lifeline Ambulance, et al., asserting causes of action for (1) negligent misrepresentation; (2) intentional misrepresentation; (3) battery; (4) personal injury; (5) violation of civil rights; (6) conspiracy against civil rights; (7) violation of RICO Act; (8) conspiracy to participate in violation of RICO Act; (9) civil conspiracy; (10) conversion; (11) respondeat superior negligence; (12) IIED; and (13) declaratory relief.

Plaintiff alleges “[o]n

or about May 12, 2024, Defendant Dennis Quang and Tanner DePadua who were Police officers for the Garden Grove City Police Department arrived on scene at a traffic collision. Defendants Quang and DePadua subsequently forced Plaintiff Rodriguez into a Falck Transport vehicle, and instructed the Falck employees to inject Plaintiff Rodriguez.” Plaintiff alleges “thereafter, on or about May 12, 2024, Plaintiff Tony Olimon Rodriguez was forced by defendants to be injected by nonconsensual drugs by UC.I. Medical Center’s Staff and others.” Plaintiff alleges Defendants’ “ulterior purpose of injecting Plaintiff Tony Olimon Rodriguez with the drugs was to fabricate evidence against Plaintiff Rodriguez to later use in support of a DUI Criminal Case. Additionally, Defendants and DOES wrongfully drugged Plaintiff Rodriguez to earn a profit for Clinical Drug

Trials, and other Scientific Research.”

DISCUSSION

Defendant Falck Mobile Health Corp. demurs to each cause of action in the complaint on the ground that Plaintiff has failed to allege sufficient facts against Defendant. As stated, Plaintiff alleges that he was involved in a motor vehicle accident and “Defendants Quang and DePadua subsequently forced Plaintiff Rodriguez into a Falck Transport vehicle, and instructed the Falck employees to inject Plaintiff Rodriguez.” There are no other facts alleged against Falck in the complaint.

The facts alleged against Falck do not show a misrepresentation for the fraud causes of action, do not show any taking of property for conversion, do not support causes of action for RICO violations or conspiracy, and do not show intent to cause emotional distress. Plaintiff does not allege any facts under the causes of action for battery (which is completely absent from the complaint except for in the caption), respondeat superior negligence, violation of civil rights or declaratory relief. Plaintiff does not mention Defendant Falck’s alleged actions under the cause of action for “personal injury.” It is also unclear what cause of action Plaintiff is alleging under the “personal injury” claim, i.e. battery or negligence. Plaintiff has failed to allege any cause of action against Defendant Falck.

CONCLUSION

The Court sustains Defendant’s demurrer to the complaint. Plaintiff to file and serve a first amended complaint within 30 days of notice of ruling. Defendant to file and serve a response within 30 days thereafter.

Defendant shall give notice.